

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No. _____

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PERMAUL SUBRAMANY,

Date Filed: March 18, 2020

Plaintiff,

SUMMONS

-against-

Pursuant to CPLR 504(3),
Plaintiff designates Bronx
County as venue based upon
where the cause of action
arose.

THE CITY OF NEW YORK, JOSE CINTRON,
FREDERICK REYES and JOHN DOES #1-6, being the
fictitious names of New York City police officers whose
names are unknown to Plaintiff,

Defendants.
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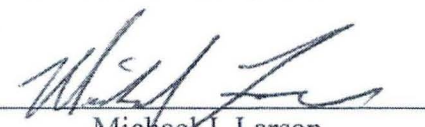
TO THE ABOVE-NAMED DEFENDANT(S):

You are hereby summoned and required to serve upon Plaintiff's attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 18, 2020

Yours, etc.,

MICHAEL J. LARSON, P.C.

By: 

Michael J. Larson
Attorneys for Plaintiff
PERMAUL SUBRAMANY
401 Broadway, Suite 806
New York, New York 10013
(212) 528-0886

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK, Defendant
C/O New York City Law Dept
100 Church Street
New York, New York 10007

JOSE CINTRON, Defendant
New York City Police Department
1 Police Plaza
New York, New York 10007

FREDERICK REYES, Defendant
New York City Police Department
1 Police Plaza
New York, New York 10007

JOHN DOES 1-6, Defendants
C/O New York City Police Department
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
PERMAUL SUBRAMANY ,

Index No. _____

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, JOSE CINTRON,
FREDERICK REYES, JOHN DOES #1-6, being the
fictitious names of New York City police officers whose
names are unknown to Plaintiff,

Defendants.

-----X

Plaintiff PERMAUL SUBRAMANY, through his counsel, for his complaint,
states the following:

PARTIES

1. Plaintiff PERMAUL SUBRAMANY is an individual who resides in Bronx, New York.
2. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation organized under the laws of the State of New York, in and as the City of New York.
3. Defendant JOSE CINTRON is an individual whose residence is unknown to Plaintiff, and who is a New York City Police Department officer.
4. Defendant FREDERICK REYES is an individual whose residence is unknown to Plaintiff, and who is a New York City Police Department officer.

5. Defendant JOHN DOES #1-6 are New York City police members whose names and addresses are presently unknown to Plaintiff.

6. The individual Defendants (that is, the individual police officers) are being sued both in their individual capacity and in their official capacity as police officers employed by Defendant CITY.

PREREQUISITES TO SUIT AGAINST THE CITY OF NEW YORK

7. Plaintiff has served timely Notice(s) of Claim upon Defendant CITY within 90 days after all causes of action described in this complaint arose that require the filing of a Notice of Claim as a prerequisite to commencing a lawsuit.

8. More than thirty days have elapsed since the service of the Notice(s) of Claim.

9. Defendant CITY and its comptroller have failed, neglected, and refused to pay, settle, and compromise the claims of Plaintiff.

10. Plaintiff has duly complied with all of the conditions precedent to the commencement of this action.

11. This action is being commenced within one year and ninety days after the happening of the events upon which claims are based and complies with all statutory requirements for timeliness.

FACTS

12. On March 20, 2019 at about 10:00 AM, Plaintiff PERMAUL SUBRAMANY was lawfully sitting in his chair inside his home and watching TV, while his home health attendant, Yamina Severino, was ironing his clothes, at 950 Jennings

Street, Apt. 6K, Bronx, New York.

13. On March 20, 2019 at approximately 10:00 AM., Defendant JOSE CINTRON, Defendant FREDERICK REYES and JOHN DOES #1-6 were New York City Police Officers (all collectively will be referred to as Defendant Police Officers), broke down Plaintiff's front door and with their guns pointed at his face and body yelled, "stop what you are doing and don't move, we are looking for a tall black man". The officers then searched his entire apartment and eventually removed him from his apartment and brought in a K-9 dog to help with the search. The officers then showed Plaintiff a picture of a man that he did not recognize. After the extensive search by the officers and the dog, the officers stated, "we made a mistake and were in the wrong apartment."

14. A reasonable person or police officer should have known that Plaintiff had committed no crime.

15. Defendant Police Officers had no warrant to stop and arrest Plaintiff.

16. Notwithstanding, Defendant Police Officers arrested Plaintiff.

17. Prior to being detained, Plaintiff attempted to inform Defendant Police Officers that he had committed no crimes and that he did not want to be detained, but Plaintiff went peacefully and submitted without resistance to the false arrest.

18. Prior to being removed from his apartment, Plaintiff was subjected to a humiliating search.

19. On March 20, 2019, at approximately 12:00 P.M., plaintiff was released after being subjected to humiliation and suffering mental anguish, sickness, annoyance, and inconvenience from being detained and arrested.

FIRST CAUSE OF ACTION**(Violation of 42 U.S.C § 1983)**

20. Plaintiff repeats and re-alleges every allegation in this complaint.
21. Defendant Police Officers intended to confine and completely confined Plaintiff.
22. Plaintiff was cognizant of the confinement.
23. Plaintiff voiced strenuous objections to the confinement in which he did not consent.
24. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff in any way.
25. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining Plaintiff and in violating Plaintiff's rights
26. Defendant Police Officers violated Plaintiff's civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, and rights under the New York State Constitution.
27. Pursuant to 42 U.S.C. § 1983, Plaintiff is entitled to damages from Defendant Police Officers for violations of Plaintiff's constitutionally protected civil rights.
28. Defendant CITY has maintained a system of review of police conduct which is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

29. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiff's based upon improper reasons would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiff and in falsely arresting Plaintiff and others in the future.

30. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiff is also entitled to damages from Defendant CITY for violations of Plaintiff's constitutionally protected civil rights.

31. Finally, all Defendants are liable for paying Plaintiff an award of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

32. Plaintiff repeats and re-alleges every allegation in this complaint.

33. Defendant Police Officers intended to confine and completely confined Plaintiff.

34. Plaintiff was cognizant of the confinement.

35. Plaintiff voiced strenuous objections to the confinement in which he did not consent.

36. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff.

37. Defendant Police Officers acted within the scope of their duties as police

offices for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiff.

38. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiff.

39. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiff.

THIRD CAUSE OF ACTION

(Battery)

40. Plaintiff repeats and re-alleges every allegation in this complaint.

41. Defendant Police Officers' acts were intentional.

42. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with the Plaintiff amounting to the civil tort of battery.

43. Defendant Police Officers' acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiff.

44. Defendant CITY is, therefore, vicariously liable for the battery that Defendant police officers inflicted upon Plaintiff.

45. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION

(Assault)

46. Plaintiff repeats and re-alleges every allegation in this complaint.

47. Defendant Police Officers' acts were intentional.

48. Defendant Police Officers' conducted resulted in harmful, offensive, and

nonconsensual body contact with the Plaintiff amounting to the civil tort of Assault.

49. Defendant Police Officers' acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they assaulted Plaintiff.

50. Defendant CITY, is therefore, vicariously liable for the assault that Defendant police officers inflicted upon plaintiff.

51. Thus, all Defendants are liable for the tort of battery.

FIFTH CAUSE OF ACTION

(Negligence)

52. Plaintiff repeats and re-alleges every allegation in this complaint.

53. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.

54. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiff.

55. The actions of Defendant Police Officers caused Plaintiff to suffer damages.

56. Consequently, Defendant Police Officers are liable for negligence.

57. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiff.

58. Defendant the CITY is, therefore, vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

59. Thus, all Defendants are liable for negligence.

SIXTH CAUSE OF ACTION**(Negligent Hiring and Retention)**

60. Plaintiff repeats and re-alleges every allegation in this complaint.

61. Defendant the CITY had a duty to hire and retain competent police officers.

62. Defendant CITY knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.

63. Defendant CITY breached its duty to hire and retain competent police officers.

64. As a result of the CITY's breach, Plaintiff suffered damages.

65. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant police officers.

SEVENTH CAUSE OF ACTION**(Defamation)**

66. Plaintiff repeats and re-alleges every allegation in this complaint.

67. Defendant Police Officers printed and/or uttered false and injurious statements concerning Plaintiff.

68. The false statements accused Plaintiff of having committed crime(s).

69. Defendant Police Officers published these false statements to third-parties.

70. Defendant Police Officers wrote and/or spoke the statements with malice,

recklessness, negligence, and gross negligence.

71. Thus, Defendant Police Officers are liable for defamation per se.

72. Defendant Police Officers acted within the scope of their duty as police officers for Defendant CITY and in the interest of the CITY when they defamed Plaintiffs.

73. Defendant CITY is, therefore, vicariously liable for the defamation that Defendant Police Officers committed.

74. Thus, all Defendants are liable for defamation per se.

WHEREFORE, Plaintiff demands judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$1 million and, pursuant to 42 U.S.C. § 1988, attorney's fees, against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$1 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$1 million against all Defendants;
- (d) on the Fourth Cause of Action (Assault), actual damages in the amount of \$1 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligence), actual damages in the amount of \$1 million against all Defendants;
- (f) on the Sixth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$1 million against Defendant CITY;
- (g) on the Seventh Cause of Action (defamation), actual and punitive damages

in the amount of \$1 million against Defendant CITY; and

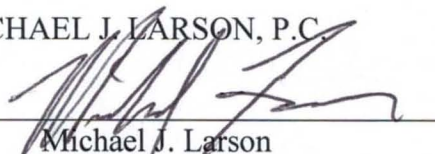
- (h) costs, disbursements, interest, and such other relief that is appropriate.

Dated: New York, New York
March 18, 2020

Yours, etc.,

MICHAEL J. LARSON, P.C.

By



Michael J. Larson

Attorneys for Plaintiff

PERMAUL SUBRAMANY

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New York, New York 10013

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